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Recently Posted NSF Rules and Notices.

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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

I am a professional programmer in the video game industry. I have worked at Activision on the largest projects in the industry, and at startups on the smallest projects. I have worked with the sorts of individuals in the tech industry hyping up technologies like blockchain, NFTs, and now "generative AI".

It is simply unacceptable to allow companies to bypass copyright restrictions, period. Companies like OpenAI, Microsoft, Google, Adobe, and Apple are engaging in blatant theft to create technologies that do not create value for the world. An OpenAI representative has already stated in plain English that their products cannot exist without the use of copyright materials without permission -- we have a word for this: "stealing".

Furthermore, these companies have demonstrated time and time again that they will engage in anti-competitive business practices that hurt Americans. It is unthinkable to trust them with unprecedented copyright privilege. In fact, they are already engaging in untrustworthy tactics, claiming that they are creating "ethical" AI models, when they are in fact using billions of copyright works without permission as we speak. They are not seeking permission to gather more data, they are seeking pardons for the data they have already illegally gathered.

For example, when Adobe introduced generative AI features in Photoshop, they claimed they were trained only on the stock photo library that they own (while quietly announcing a partnership with OpenAI). However, AI image generators require billions of images to function, far more images than Adobe's stock photo library contains. It is obvious that Adobe's claim is a lie, and that they are gaslighting Americans about the nature of their products. It is gut-wrenching to think that a company engaging in such untrustworthy behavior could be granted special privileges.

It is important to understand that despite the newly-granted name "AI", machine learning is not "artificial intelligence". Machine learning encompasses algorithms that produce outputs that are a function of their input. Fundamentally, machine learning does not invent new outputs. If an LLM can output a corporate email, it's because millions of similar corporate emails were taken without permission as training data. If an "AI" image generator can produce a picture of Mickey Mouse, it's because millions of images of Mickey Mouse were taken without permission. Moreover, these models require TENS OF BILLIONS of such training data to function at the level they current do.

An economy cannot function when theft is rampant. Allowing this to continue is a bad idea for Americans, and a bad idea for the American economy.

Finally as a personal note, the fact that my work and the work of my friends is already being stolen at-scale is profoundly troubling and insulting. I don't know if I could ever support a politician or political party that sides with the thieves.